

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
JOSHUA ALVAREZ and CATIUSCA JORGE,

Plaintiffs,

-against-

THE CITY OF NEW YORK,
NYPD DETECTIVE JOSE SANDOBAL,
NYPD UNDERCOVER OFFICER UC # C0072,
NYPD SGT. MILTON VALERIO,
NYPD SGT. NICOLE TIRADO and
NYPD LT. ANTHONY RONDA,

Defendants.

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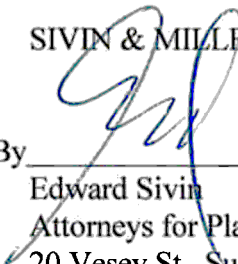
To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 22, 2019

SIVIN & MILLER, LLP

By



Edward Sivin
Attorneys for Plaintiffs
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

-The City of New York:

c/o NYC Corporation Counsel, 100 Church St., New York, NY 10007

-NYPD Detective Jose Sandobal: (Tax ID 935693)

c/o NYPD Drug Enforcement Task Force, One Police Plaza, New York, NY 10038

-NYPD Undercover Officer UC # C0072,

c/o NYPD Drug Enforcement Task Force, One Police Plaza, New York, NY 10038

-NYPD Sgt. Milton Valerio: (Tax ID 943907)

c/o Transit Bureau District 11

-NYPD Sgt. Nicole Tirado: (Tax ID 931332)

c/o Narcotics Borough Manhattan North

-NYPD Lt. Anthony Ronda: (Tax ID 894324)

c/o NYPD 30th Precinct Detective Squad

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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JOSHUA ALVAREZ and CATIUSCA JORGE,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
NYPD DETECTIVE JOSE SANDOBAL,
NYPD UNDERCOVER OFFICER UC # C0072,
NYPD SGT. MILTON VALERIO,
NYPD SGT. NICOLE TIRADO and
NYPD LT. ANTHONY RONDA,

Defendants.

----- X

Plaintiffs, by their attorneys SIVIN & MILLER, LLP, as and for their complaint
herein, allege as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiffs Joshua Alvarez (hereinafter “Alvarez”) and Catusca Jorge (hereinafter “Jorge”) were and are residents of the County of Bronx, City and State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
4. That at all times herein mentioned, the City operated, controlled, managed, and maintained The New York Police Department (hereinafter the “NYPD”).
5. That at all times herein mentioned, defendant NYPD Detective Jose Sandobal (hereinafter “Sandobal”) was and is a police detective employed by the NYPD.

6. That at all times herein mentioned, Sandobal was acting within the course and scope of his employment with the NYPD.

7. That at all times herein mentioned, Sandobal was acting under color of state law.

8. That at all times herein mentioned, defendant NYPD Undercover Officer UC # C0072 (hereinafter "UC") was and is an undercover officer employed by the NYPD.

9. That at all times herein mentioned, UC was acting within the course and scope of his employment with the NYPD.

10. That at all times herein mentioned, UC was acting under color of state law.

11. That at all times herein mentioned, defendant NYPD Sgt. Milton Valerio (hereinafter "Valerio") was and is a police sergeant employed by the NYPD.

12. That at all times herein mentioned, Valerio was acting within the course and scope of his employment with the NYPD.

13. That at all times herein mentioned, Valerio was acting under color of state law.

14. That at all times herein mentioned, defendant NYPD Sgt. Nicole Tirado (hereinafter "Tirado") was and is a police sergeant employed by the NYPD.

15. That at all times herein mentioned, Tirado was acting within the course and scope of her employment with the NYPD.

16. That at all times herein mentioned, Tirado was acting under color of state law.

17. That at all times herein mentioned, defendant NYPD Lt. Anthony Ronda (hereinafter "Ronda") was and is a police lieutenant employed by the NYPD.

18. That at all times herein mentioned, Ronda was acting within the course and scope of his employment with the NYPD.

19. That at all times herein mentioned, Ronda was acting under color of state law.

THE FACTS

20. Plaintiffs repeat and reallege each and every allegation set forth above as though fully set forth at length herein.

21. That prior to February 23, 2016, officers with the NYPD, including but not limited to Sandobal, UC, Valerio, Tirado, and Ronda (hereinafter referred to collectively as “the officers”), without probable cause of other legal justification, initiated and/or caused to be initiated a prosecution of Alvarez in which Alvarez was charged with various crimes of which he was innocent and of which the officers knew Alvarez to be innocent.

22. That in support of the aforesaid prosecution, the officers intentionally failed to make a full and complete statement of facts to the District Attorney and/or to a Grand Jury, withheld exculpatory information from the District Attorney and/or the Grand Jury, and furnished evidence and information to the District Attorney and/or the Grand Jury that the officers knew was false.

23. That in support of the aforesaid prosecution, UC knowingly made several false statements to fellow NYPD officers, to the District Attorney, and to a Grand Jury, including but not limited to a) that he observed Alvarez sell illegal drugs on multiple occasions; 2) that Alvarez provided his name to UC during one or more of those transactions; 3) that Alvarez provided his telephone number to UC during one or more of those transactions; and 4) that Alvarez answered his telephone when UC called that telephone number.

24. That the aforesaid false statements and information constituted material evidence that was likely to influence a judge or jury on Alvarez’s guilt.

25. That on or about February 23, 2016, the officers forcibly entered plaintiffs’ residence at 2593 Grand Concourse, Bronx, NY.

26. That after forcibly entering plaintiffs' residence, the officers forcibly searched plaintiffs and plaintiffs' residence, without plaintiffs' consent, and damaged and destroyed property inside plaintiffs' residence.

27. That after forcibly entering plaintiffs' residence, the officers also arrested and forcibly handcuffed and detained plaintiffs and/or caused the arrest and forcible detention of plaintiffs.

28. That the aforesaid entry, search, seizure, handcuffing, arrest, and detention of plaintiffs was undertaken without probable cause and without a warrant, and without otherwise being justified.

29. That alternatively, the entry, search, arrest, and detention of plaintiffs was undertaken pursuant to a warrant that was procured through the intentional malfeasance of the officers, as set forth above, and in failing to make a full and complete statement of facts to the District Attorney and/or to the court that issued the warrant, in withholding exculpatory information from the District Attorney and/or the court that issued the warrant, in furnishing information to the District Attorney and/or the court that the officers knew was false, and in otherwise acting in bad faith.

30. That following his arrest Alvarez was imprisoned without his consent and without justification at various locations, until his release from custody approximately forty-eight hours after his arrest.

31. That following their arrest of Alvarez, the officers intentionally disregarded exculpatory evidence, including but not limited to a huge scar on Alvarez's face that definitively demonstrated that Alvarez was not the individual who had engaged in the illegal activities with which he was charged, and statements by Alvarez's co-defendants that Alvarez had not engaged in

any of the illegal activities with which he was charged.

32. That on or about March 14, 2016, all charges against Alvarez were dismissed and the criminal proceeding terminated favorably to Alvarez.

33. That each of the officers observed the illegal conduct or his or her fellow officers, had a reasonable opportunity to intervene to prevent or stop that conduct, but deliberately failed and refused to do so.

34. That the aforementioned actions of the officers were malicious and intentional in nature.

35. That as a result of the foregoing, plaintiffs suffered physical and psychological injuries, endured and will continue to endure pain and suffering and loss of enjoyment of life, were deprived of their liberty and freedom, incurred attorney's fees in defense of the malicious prosecution, suffered damage to property, incurred other economic loss, and were otherwise damaged.

36. That upon information and belief, the officers had been involved in prior incidents involving conduct undertaken in violation of citizens' civil and constitutional rights while in the course and scope of their employment.

37. That upon information and belief, the City and the NYPD knew that the officers had been involved in conduct undertaken in violation of citizens' civil and constitutional rights in the course and scope of their employment.

38. That upon information and belief, the City and the NYPD acted with deliberate indifference to this prior pattern of conduct by the officers, which deliberate indifference ultimately caused the damages alleged by plaintiffs herein.

FIRST CAUSE OF ACTION ON BEHALF OF ALVAREZ AGAINST THE OFFICERS
(Unreasonable Search and Seizure Under 42 U.S.C. § 1983)

39. Plaintiffs repeat and reallege each and every allegation set forth above as though fully set forth at length herein.

40. That the aforesaid actions by the officers in forcibly entering plaintiffs' residence and then forcibly searching, seizing, handcuffing, detaining, arresting, and prosecuting Alvarez, constituted unreasonable and illegal searches and seizures and a violation of Alvarez's right to due process, in violation of Alvarez's rights under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle Alvarez to recover damages under 42 U.S.C. § 1983.

SECOND CAUSE OF ACTION ON BEHALF OF ALVAREZ AGAINST THE OFFICERS
(42 USC § 1983 Claim Based on Denial of Right to Fair Trial)

41. Plaintiffs repeat and reallege each and every allegation set forth above as though fully set forth at length herein.

42. That the aforesaid actions by the officers in fabricating evidence, withholding exculpatory evidence, and making false statements constitute a denial of Alvarez's right to a fair trial, in violation of Alvarez's rights under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and entitle Alvarez to recover monetary damages under 42 U.S.C. § 1983.

THIRD CAUSE OF ACTION ON BEHALF OF JORGE AGAINST THE OFFICERS
(Unreasonable Search and Seizure Under 42 U.S.C. § 1983)

43. Plaintiffs repeat and reallege each and every allegation set forth above as though fully set forth at length herein.

44. That the aforesaid actions by the officers in forcibly entering plaintiffs' residence and then forcibly searching, seizing, handcuffing, and detaining Jorge constituted

unreasonable and illegal searches and seizures and a violation of Jorge's right to due process, in violation of Jorge's rights under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle Jorge to recover damages under 42 U.S.C. § 1983.

FOURTH CAUSE OF ACTION ON BEHALF OF ALVAREZ and JORGE
AGAINST THE OFFICERS
(42 U.S.C. § 1983 Claim Based on Failure to Intervene)

45. Plaintiffs repeat and reallege each and every allegation set forth above as though fully set forth at length herein.

46. That as a result of the deliberate failure and refusal of the officers to intervene to prevent and/or stop the actions of their fellow officers, plaintiffs sustained the injuries alleged herein and are entitled to recover damages against the officers under 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION ON BEHALF OF ALVAREZ and JORGE
AGAINST THE CITY
("Monell" Claim)

47. Plaintiffs repeat and reallege each and every allegation set forth above as though fully set forth at length herein.

48. That the aforesaid incidents and resulting damage to plaintiffs were due a deliberate indifference by the City to a pattern of unconstitutional conduct by the officers, and entitle plaintiffs to recover damages from the City under 42 U.S.C. § 1983.

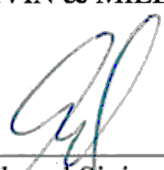
WHEREFORE, plaintiffs demand judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in amounts that exceed the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter,

and for punitive damages against the officers, and attorney's fees against defendants pursuant to 42 USC § 1988, and plaintiffs also demand the costs and disbursements of this action.

Dated: New York, New York
February 22, 2019

Yours, etc.
SIVIN & MILLER, LLP

By



Edward Sivin
Attorneys for plaintiffs
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
February 22, 2019



EDWARD SIVIN

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Year 2019

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COUNTY OF BRONX

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Plaintiffs,

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THE CITY OF NEW YORK, et. al.,

Defendants.

VERIFIED COMPLAINT

SIVIN & MILLER, LLP

Attorneys for Plaintiffs

20 Vesey St., Suite 1400

New York, NY 10007

(212) 349-0300

FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
February 22, 2019